

deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].)

12. *Sundel Power, Inc. v. American West College, et al*, Case No. CIVSB2431709
Plaintiff's Motion to Strike Answer
6/24/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **DENY** Plaintiff's motion. However, the Court would **ORDER** Defendants American West and Hong to either (1) deliver the \$1,920 payment at the hearing or (2) hand-deliver the check to Plaintiff's Counsel by no later than June 26, 2026. If Defendants fail to do so, Plaintiff may bring an *ex parte* on or after June 30, 2026, seeking daily imposed sanctions until compliance pursuant to the Court's inherent authority to enforce its orders.

Case Summary

This case relates to a real property sale. Plaintiff alleges that Defendants American West and Hong were the owners and sellers of certain real property in Wrightwood, California. Plaintiff also alleges that, on September 23, 2025, they entered into a written agreement to sell the property to Plaintiff. Other named Defendants have an interest in the property. (Compl., ¶18.) However, despite the contract, Defendant American West refused to sell. As such, Plaintiff filed suit on November 4, 2024, alleging causes for (1) specific performance; (2) quiet title; (3) declaratory relief; (4) breach of contract; (5) fraud; (6) negligent misrepresentation; (7) rescission of contract; and (8) conversion.

Statement of the Law

Code of Civil Procedure section 436(a) states that matters that are irrelevant, false, or improper are subject to a motion to strike. "Irrelevant" means any immaterial allegation, and "immaterial" means (1) an allegation that is not essential to the statement of a claim or defense; (2) an allegation that is neither pertinent to nor supported by a sufficient claim or defense; or (3) a demand for relief not supported by the allegations. (Code Civ. Proc., § 431.10(b)-(c).) Additionally, all or part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or order of the court may be stricken. (Code Civ. Proc., § 436(b).)

Analysis

As a preliminary matter, Plaintiff has brought its motion per Code of Civil Procedure sections 435 and 436 but fails to comply with the meet-and-confer obligation. No declaration was filed

attesting to meeting and conferring over the merits of the motion via telephone, teleconference, or in person. On this basis alone, the Court has discretion to deny.

However, the Court need not rely on this shortcoming. The basis of the motion is that, when Defendants' defaults were set aside, they were ordered to pay \$1,920, which they have not yet done. (Park Decl., ¶¶4 & 6.) Now, Defendant Hong attests that he was not aware of the need to pay, and, upon learning of that obligation, he tried tendering the check to the Court. The Court rejected the payment because it needed to be paid directly to Plaintiff's Counsel. He has since delivered the check to his new counsel who is in possession and ready and willing to provide it to Plaintiff's Counsel. Attorney Kym contacted Plaintiff's Counsel about the money, but Counsel refused to withdraw this motion and accept the payment. (Hong Decl., ¶¶3-8; Kym Decl., ¶¶5-7.)

The primary problem with Plaintiff's position is that it argues and contends that the payment of the \$1,920 was a *condition precedent* for the set aside of American West and Hong's defaults and for filing their Answer. However, that is not what the adopted tentative ruling on February 17, 2026, states. It simply *granted* the motion and then "further ordered" the payment. (See Tentative, Feb. 17, 2026.) Nothing in the language used imposed the payment as a condition precedent for the setting aside of the defaults.
